

UNIVERSITY OF NEBRASKA MEDICAL CENTER PROFESSIONAL SERVICES AGREEMENT

THIS Professional Services Agreement ("AGREEMENT") is dated this 1st day of October 21, between the Board of Regents of the University of Nebraska, a public body corporate for and on behalf of the University of Nebraska Medical Center ("UNMC"), and on behalf of the Munroe-Meyer Institute (MMI) and Millard Public Schools ("MPS").

WHEREAS, UNMC/MMI is engaged in the business of providing transition and rehabilitation services and MPS desires to retain the professional services of such UNMC/MMI service providers at MMI.

NOW, THEREFORE, for mutual consideration, it is agreed between UNMC/MMI and MPS as follows:

1. **SERVICES.** UNMC/MMI accepts such engagement to provide Services as provided in Addendum A attached hereto and incorporated herein by this reference.
 - A. During the term of this Agreement, UNMC/MMI shall provide transition and rehabilitation services as requested by MPS and described in Addendum "A" ("Services").
 - B. UNMC/MMI has appointed "Director of MMI UCEDD" or their designee to provide supervision of the transition and rehabilitation services provided under this Agreement ("Service Provider").
 - C. UNMC/MMI recognizes that MPS shall have complete authority with regard to the acceptance for treatment of, or for authority with regard to the establishment of the appropriate fee for professional services rendered by UNMC/MMI pursuant to this Agreement.
 - D. UNMC/MMI shall cause Service Provider to maintain appropriate, timely and accurate records relating to all professional services rendered by Service Provider under this Agreement. All medical and student records generated as a result of this Agreement shall remain the sole property of MPS and shall be maintained as confidential by Service Provider in compliance with HIPAA and FERPA.
 - E. There is no agreement, expressed or implied, between MPS and UNMC/MMI, governing the referral of patients or business. This Agreement is not intended to influence the judgment of Service Provider or UNMC/MMI in the performance of Services in referring patients for proper treatment and care. Any Service Provider performing Services hereunder shall not receive any compensation or remuneration for referrals, if any. The parties specifically do not intend to violate the "Ethics in Patient Referral Act" [42 USC 1395nn] (commonly known as the Stark Act). MPS is expressly authorized, encouraged, and required to make all judgments regarding referral solely on the basis of the patient's demonstrated clinical needs and the abilities and qualifications of facilities and practitioners.
2. **COMPENSATION.** As compensation for Services provided, UNMC/MMI shall be compensated as follows:
 - A. During the Term of this Agreement, UNMC/MMI shall be paid for Services provided hereunder ("Fees"). Fees will be detailed in Addendum B attached hereto and incorporated herein by reference.
 - B. The Fees shall be paid monthly to UNMC/MMI within ~~ten (10) days~~ following delivery of an invoice detailing the hours of Services provided for the prior month.
3. **TERM.** This Agreement shall begin on the first day above written and shall continue until May 31, 2022. Notwithstanding the foregoing, this Agreement may be terminated prior to the scheduled expiration in accordance with the provisions of Section 8 below.
4. **INDEPENDENT CONTRACTOR.** UNMC/MMI agrees to comply with all laws and regulations applicable to Services provided under this Agreement.
 - A. None of the provisions of this Agreement are intended to create any relationship between UNMC/MMI and MPS other than that of independent entities contracting with each other solely for the purpose of effecting the provisions of this Agreement. For purposes of this Agreement, the Service Provider shall be considered employees of UNMC/MMI. Service Provider is not an employee of MPS. Accordingly, UNMC/MMI shall

* MPS will process all approved invoices received by the 20th of the month for payment after the first Monday Board of Education meeting of the following month.

be responsible for payment of all of Service Provider's social security tax and any and all other federal, state, or local income or other taxes.

- B. UNMC/MMI represents and warrants that the Service Provider providing Services during the Term of this Agreement has not been (i) excluded, debarred, or otherwise ineligible to participate in the Federal health care programs as defined in 42 USC § 1320a-7b(f) (the "Federal healthcare programs"); or (ii) convicted of a criminal offense related to the provision of health care items or services, but have not yet been excluded, debarred, or otherwise declared ineligible to participate in the Federal health care programs. If either party becomes excluded from Federal health care program participation, this Agreement may be terminated immediately, for cause, by the other party. If Service Provider becomes excluded from Federal health care program participation, such individual shall be removed from participating in this Agreement immediately. Failure to remove such excluded individual immediately shall provide the right to terminate this Agreement immediately for cause.
 - C. Service Provider shall be qualified by virtue of background, education, experience and training to provide Services hereunder and shall continuously meet all of the qualifications, including any licensure requirements for Services provided hereunder.
 - D. UNMC/MMI shall cause Service Provider to maintain appropriate, timely and accurate records relating to all professional services rendered by Service Provider under this Agreement.
5. **INDEMNIFICATION.** The parties to this Agreement shall be liable for their own acts and omissions and shall not be responsible for the acts and omissions of the other party.
6. **INSURANCE.** UNMC/MMI shall maintain and provide evidence of general liability insurance coverage in the amount of \$1,000,000 per occurrence and \$3,000,000 in the annual aggregate for claims of bodily injury, death, or property damage caused by negligent acts, errors or omissions relating to the performance of Services under this Agreement.
7. **CONFIDENTIALITY.**
- A. Both parties agree to respect and abide by all federal, state and local laws pertaining to confidentiality with regard to all information and records obtained or reviewed in the course of providing services under this Agreement. Both parties are committed to complying with the Standards for Privacy of Individually Identifiable Health Information under the Health Insurance Portability and Accountability Act of 1996 ("HIPAA") and the Health Information Technology for Economic and Clinical Health Act and regulations promulgated thereunder ("HITECH"). The parties shall comply with all applicable federal, state and local laws and regulations relating to the privacy of subject health information including, but not limited to, the Standards for Individually Identifiable Health Information, 45 CFR Parts 160 and 164 (the "HIPAA Privacy Regulation"). It is understood and agreed that UNMC/MMI and MPS may not use or disclose Protected Health Information ("PHI"), as defined in the HIPAA Privacy Regulation, for purposes other than treatment, payment or health care operations without first obtaining authorization from the individual concerned.
 - B. All medical records generated as a result of this Agreement shall remain the sole property of MPS and shall be maintained as confidential by Service Provider in compliance with HIPAA.
 - C. The provisions of this paragraph and addendums will survive the termination of this Agreement.
 - D. Pursuant to the Family Educational Rights and Privacy Act (FERPA), the parties agree that any student information that is not considered directory information shall remain confidential. Such information, by way of example includes, but is not limited to financial, medical, disciplinary and academic records.
8. **TERMINATION.** This Agreement may be terminated prior to the scheduled expiration as follows:
- A. Either party may terminate this Agreement immediately upon thirty (30) day written notice.
 - B. UNMC/MMI may terminate this Agreement upon i.) the inability of the Service Provider to continue the Services for MPS; ii) for a material breach of a material provision hereof by MPS, which breach is not cured by MPS within thirty (30) days following receipt of written notice thereof from UNMC/MMI.
 - C. In the event this Agreement is terminated by MPS as a result of an uncured breach by UNMC/MMI as provided under Section 8, all fees earned to the date of termination shall be immediately due and payable to

UNMC/MMI.

9. **LIMITATION OF LIABILITY.** IN NO CASE SHALL EITHER PARTY OR ANY OF THEIR RESPECTIVE TRUSTEES, DIRECTORS, OFFICERS, MEDICAL OR PROFESSIONAL STAFF BE LIABLE TO THE OTHER PARTY FOR SPECIAL, INDIRECT, INCIDENTAL, PUNITIVE OR CONSEQUENTIAL DAMAGES (INCLUDING LOST BUSINESS PROFITS) SUSTAINED BY THE OTHER PARTY FOR ANY MATTER ARISING OUT OF OR PERTAINING TO THE SUBJECT MATTER OF THIS AGREEMENT OR THE RIGHTS GRANTED HEREUNDER, HOWEVER CAUSED AND ON ANY THEORY OF LIABILITY, REGARDLESS OF WHETHER SUCH PARTY IS INFORMED OF THEIR POSSIBILITY OR WOULD HAVE REASON TO KNOW OR IN FACT SHALL KNOW OF THE POSSIBILITY. THE PARTIES HEREBY EXPRESSLY ACKNOWLEDGE THAT THE FOREGOING LIMITATIONS HAVE BEEN NEGOTIATED BY THE PARTIES AND REFLECT A FAIR ALLOCATION OF RISK.

10. **MISCELLANEOUS.**

- A. **NONDISCRIMINATION.** Each party agrees to comply fully with Title VI of the Civil Rights Act of 1964, as amended, the Nebraska Fair Employment Practice Act, Neb. Rev. Stat. §§48-1101 to 48-1125, as amended in that there shall be no discrimination against any employee who is employed in the performance of this contract.
- B. **NEBRASKA TAXPAYER TRANSPARENCY ACT.** Pursuant to Nebraska's Taxpayer Transparency Act (Neb. Rev. Stat. §84-602.01, as may be amended), as of January 1, 2014, the University of Nebraska is required to provide the Nebraska Department of Administrative Services with a copy of each contract that is a basis for an expenditure of state funds, including any amendments and documents incorporated by reference in the contract. Copies of all such contracts and documents will be published by the Nebraska Department of Administrative Services at <https://statecontracts.nebraska.gov/>.
- C. **GOVERNING LAW.** This Agreement shall be governed by Nebraska law.
- D. **ASSIGNMENT.** This Agreement shall not be assignable by MPS without the prior written consent of UNMC/MMI.
- E. **NO WAIVER.** This Agreement shall not be modified, amended or any provision(s) waived except by a further written document signed by MPS and UNMC/MMI. A waiver of any term or provision shall not be construed as a waiver of any other term or provision.
- F. **COUNTERPARTS.** This Agreement may be executed in counterparts, each of which counterparts, when so executed and delivered, shall be deemed to be an original, and all of which counterparts, taken together, shall constitute one and the same instrument even if both parties have not executed the same counterpart. Signatures provided by facsimile transmission or other electronic delivery shall be deemed to be original signatures.
- G. **FORCE MAJEURE.** Any delays in or failure of performance by any Party under this Agreement, other than failure to make payments hereunder, shall not be considered a breach of this Agreement if and to the extent caused by occurrences beyond the reasonable control of the Party affected, including but not limited to: Acts of God; acts, regulations or laws of any government; strikes or other concerted acts of workers; fires; floods; explosions; riots; wars; rebellion; terrorism; and sabotage; and any time for performance hereunder shall be extended by the actual time of delay caused by such occurrence; provided that if such delay continues for a period of sixty (60) consecutive days, either Party may terminate this Agreement upon written notice to the other Party, and provided further that the absence of adequate funding to meet payment obligations hereunder shall in no event be deemed to be a circumstance beyond the applicable Party's control.
- H. **ENTIRE AGREEMENT.** This Agreement constitutes the entire written agreement of the parties with respect to the subject matter of this Agreement and supersedes any prior written agreements of the parties regarding the subject matter of this Agreement.
- I. **NOTICES.** Except as otherwise expressly provided herein, any notice required or permitted to be given to the parties under this Agreement shall be sufficient if in writing, (i) mailed or delivered to at the applicable address below, (ii) delivered by reputable overnight delivery service, or (iii) delivered by hand delivery. Notices are to be provided at the addresses provided below.

IN WITNESS WHEREOF, the parties have executed this Agreement on the first day above written.

Board of Regents of the University of Nebraska

Title: Assistant Vice Chancellor
for Business and Finance, UNMC

By: Jeffrey D. Miller
Jeffrey D. Miller

Date: 10/12/2021

Address: 985070 Nebraska Medical Center
Omaha, NE 68198-5070

Millard Public Schools

Title: *Director of Special Education*

By: *Terry Houlton*

Terry Houlton

Date:

9/23/21

Address:

*5806 S 147th Street
Omaha, NE 68137*

READ AND ACKNOWLEDGED:

**Munroe-Meyer Institute at the University of
Nebraska Medical Center**

Title: Director, Munroe-Meyer Institute

By: Karoly Mirmics, MD, PhD
Karoly Mirmics

Date: 10/11/2021

Title: Director, MMI UCEDD Department

By: Mark Shriver, PhD, BCBA-D
Mark D Shriver

Date: 10/11/2021

Title: Director, MMI Business Services

By: Matthew Stelzer, MBA
Matthew Stelzer

Date: 10/11/2021

PROFESSIONAL SERVICES ADDENDUM "A"

Duties and Responsibility. In the discharge of their responsibilities and without limiting overall responsibility, Service Provider shall:

1. Contractor will provide transition services, including supervision of such services for students selected by Millard Public Schools for the 2021-2022 School Year. If requested, a budget for including Extended School Year/Summer School Session(s) will be covered by the terms of this contract and will require development and agreement on a budget, as they are not included in the budget of this proposal. The Required Services shall be provided in conformity with Millard Public Schools' calendar as adopted or to be adopted setting forth the calendar days comprising School Year and Summer School Session(s). Services shall include, but not be limited to, the following:
2. Supervisory services of services provided with evaluative judgments as to the quality and appropriateness of the individual services delivered by the individual educators and staff as well as immediate professional supervision of the individual educators and staff. Immediate professional supervision shall include responsibility for assuring that all assigned caseload work, including but not limited to direct educational services and required reports, has been timely performed by the individual educators and staff in accordance with each student's Individual Education Plan ("IEP").
3. Educational and transition services for students as requested by MPS and at the location selected by MPS, including written reports and attendance at Individual Education Plan and Multidisciplinary Team (respectively, "IEP" and "MDT") meetings. Such educational and transition services shall be provided by Contractor's faculty and staff, including Certified teachers who are currently licensed to practice in the State of Nebraska, and in accordance with all applicable laws, regulations and procedures, including but not limited to the requirements of NOE Rule 51, Regulations and Standards for Special Education Programs ("Rule 51"), as the same may be revised or amended from time to time, and District's Special Education Procedures.
4. Direct transition services for eligible students as set forth in each student's IEP document at the location selected, including attendance at IEP meetings as requested, preparation and submission of IEP data, preparation and submission of quarterly IEP goal and objective reports, participation in parent/teacher conferences as requested, training parents and others regarding the provision of services and consultation with parents and teachers as requested by MPS. Such direct services shall be provided by Contractor's faculty and staff, as well as Certified Teachers currently licensed to practice in the State of Nebraska, and currently certified and approved to practice in the State of Nebraska, all in accordance with all applicable laws, regulations and procedures, including but not limited to the requirements of NDE's Rule 51, as the same may be revised or amended from time to time, and District's Special Education Procedures. Direct educational and transition services may range from observation and reporting on a once per semester or once per quarter basis to individual education sessions ranging in frequency from one hour per month to three hours per week.
5. Attendance by Contractor's faculty and staff, including Certified Teachers, providing services under this Agreement at Program Meetings with staff as requested.
6. Preparation for and provision of testimony by individual faculty and staff, including Certified Teachers, on behalf of MPS, by deposition, at hearing or trial or otherwise, in any administrative or judicial proceeding in which MPS is a party regarding the provision of special education related services or educational evaluation or diagnostic services to any student of MPS or consultation or training services to any parent or guardian of a MPS student.
7. Provision of copies of any records maintained by Contractor or individual faculty and staff with respect to the services provided under this Agreement upon request by MPS and without charge to District.

FEES ADDENDUM "B"

FEES: Below fees reflect providing transition and rehabilitation services. Any other service fees would be negotiated and agreed upon separately.

1. Budget:

MPS & MMI 2021-2022 School Year Contract 10/1/2021 - 5/31/2022

Services	Rate/hr	Hours/wk	Weeks	Total Hours	Total Cost
Program Supervisor	\$77.30	5	30	150	\$ 11,595
Program Consultant/Certified Teacher	\$70.86	20	30	600	\$ 42,516
Paraprofessional	\$18.00	30	30	900	\$ 16,200
Subtotal					\$ 70,311
Admin Fee (10%)					\$ 7,031
Total Cost for Provider Services					\$ 77,342
Total Monthly (8)					\$ 9,668